

## Confidentiality of Patient Information

### Standard:

To establish system-wide standards for the protection of patient identity and/or health information, include photographs and video records.

### Definitions:

**Health information:** Any information possessed by a healthcare provider regarding a patient's medical history, mental or physical condition, treatment, or the specific circumstances surrounding an identifiable incident.

**Protected Health Information (PHI):** Individually identifiable health information that is held or transmitted in any form or media, whether electronic, written, spoken, printed, digital, recorded, or photographic, which can be linked to an individual or there is a reasonable basis to believe it can be used to identify an individual.

**Personally Identifiable Information (PII):** Any information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information. This includes direct identifiers such as name or social security number, as well as indirect identifiers, including date and place of birth.

### Policy:

Persons receiving care from Austin-Travis County EMS System Providers have the right to expect that their confidentiality will be reasonably preserved. Therefore:

- a) Providers shall not disclose medical information, images, or videos without first obtaining authorization from the patient or the patient's legally authorized representative, except when such disclosure is legally permitted or required by law.
- b) As a general rule, providers should limit their disclosure of PII and PHI to that which is necessary for patient care.
- c) While on duty, providers may not utilize personal devices to record video or take photographs of emergency incidents unless prior written authorization is obtained from the Chief Medical Officer or their agency Administrator of Record.
  - a. Any devices utilized to record video and/or photographs at emergency incidents must comply with appropriate state and federal law.
- d) Any recordings taken during an emergency incident shall not be altered in any way and must be made available to performance improvement staff and records retention personnel if requested.
- e) Each agency should create a streamlined process for collecting and securing any video and photographic data that is collected on emergency incidents.

This rule applies to all providers while on duty in the ATCEMS System. Additionally, providers are responsible for ensuring that students, riders, etc. on their unit adhere to the same standards of patient confidentiality and shall report breaches in confidentiality to their chain of command.